

		The Court GRANTS Defendant's Motion for Summary Judgment. On July 24, 2026, the Court ordered that Defendant's Motion to Deem Requests for Admissions, Set One, Admitted be granted and that the truth of the specified matters and the genuineness of the specified documents in Defendant's First Set of Requests for Admission, served on Plaintiff through counsel of record W. Scott Ayers on June 21, 2026, be deemed admitted. In light of those admissions, Plaintiff has failed to establish a triable issue of material fact or law. Defendant, in turn, has established the affirmative defense of retaliatory eviction. Accordingly, Defendant is entitled to judgment as a matter of law, and the Motion for Summary Judgment is GRANTED. Therefore, the Court finds judgment for the Defendant, Minji Byun, for possession of the property located at 20 Rushingwing, Irvine, CA 92614, County of Orange. The Defendant is the prevailing party, and Defendant's counsel may provide a motion and accounting to the Court requesting attorneys' fees and costs, which are not to exceed \$1000 per Section 37 of the Lease Agreement. Defendant's counsel is ordered to provide notice of the Court's ruling.
8	30-2026-01579273 Gelt Oasis Exchange, LLC vs. Clark	The Court has read and considered the Motion for Summary Judgment (ROA 89), Plaintiff's Opposition (ROA 135), and Defendant's Reply In Support of Motion for Summary Judgment (ROA 139). The Court DENIES the Motion for Summary Judgment. The Court finds that triable issues of material fact and law remain. Section D(4) of the Lease, under the heading "RENT," provides: "We reserve our rights under Civil Code § 1479 to apply any payments we receive to any amounts due (whether Rent, Charges, Late Charges or any other amount) in any manner we choose, and any contrary instructions or conditions you may attempt to impose will be of no force or effect." The parties have raised material factual and legal disputes concerning Plaintiff's application of payments received under the Lease. In particular, triable issues remain regarding how Plaintiff applied the payments, the order in which the payments were applied, and whether, following that application, any remaining balance constituted unpaid rent or other fees or charges. Defendant's Reply identifies seven (7) questions and contends that Plaintiff's Opposition does not adequately address them. The record before the Court likewise does not contain dispositive evidence resolving the material issues raised by the parties. For example, the Motion does not identify evidence, such as a party admission or deposition testimony, conclusively establishing how and when the charges were applied, how Defendant's rent payment was applied, or what actions were taken following the insufficient-funds issue.

		These unresolved matters present material factual disputes concerning the processing and application of payments under the Lease. Resolution of those factual issues requires consideration of the evidence and testimony concerning Plaintiff's processing and application of the payments and is appropriately determined by the trier of fact. Accordingly, because triable issues of material facts and law remain concerning the application of payments and the resulting balance, summary judgment is not warranted. All parties are ordered by this Court to report in person on Tuesday, 9/8/2026 at 9:00 AM to Department C33. Parties are ordered to comply with the instructions given in the 9/2/2026 Minute Order for the Jury Trial in front of Judge Leal.
9	30-2026-01578531 Sanderson J. Ray Apartments Property, LLC vs. Wright	The Court has read and considered the Motion for Stay of Execution of Judgment Pending Appeal by Randal H. Brown II (ROA 40). The Court takes Judicial Notice of the Complaint (ROA 2), Request for Entry of Default (ROA 21), 8/18/2026 Minute Order (ROA 30), Judgment-Unlawful Detainer (ROA 25), Writ of Possession (ROA 32), Ex Parte Application for Stay of Execution of Judgment Pending Appeal (ROA 35), and 8/21/2026 Minute Order (ROA 38). ROA 40 is the same request as ROA 35, except that Mr. Brown crossed out the "ex parte" language before resubmitting it as ROA 40. The Court has already ruled on the substance of the request in the Minute Order of 8/21/2026. As to ROA 40, Mr. Brown failed to provide notice and service of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. No declaration of service or proof of service is attached. A person appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive rules of procedure as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) The Court DENIES Mr. Brown's Motion for Stay of Execution of Judgment Pending Appeal. The Court Clerk is to notify the Orange County Sheriff's Department to proceed with the lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.